

CV-25-002651 DAVIS, JONATHAN vs GENERAL MOTORS LLC – Plaintiff’s Motion to Determine the Amount of Reasonable Attorney’s Fees, Costs, and Expenses to be Paid by Defendant – GRANTED in the reduced amount of \$18,846.11.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: Plaintiff’s critique of the opposition’s failure to identify Plaintiff accurately is well-taken. The Court GRANTS Plaintiff’s motion in the reduced amount of \$18,846.11, which is comprised of \$17,885 in attorney’s fees and \$961.11 in costs. Moving party to serve and submit a proposed order. (Cal. Rules of Court, rule 3.1312.) Plaintiff filed the instant action under the Song-Beverly Consumer Warranty Act on March 21, 2025. After the parties settled on the merits, Plaintiff filed the instant motion on July 8, 2026, requesting \$32,666.50 in attorney’s fees and \$961.11 in costs, for a total award of \$33,627.61. “[T]he reasonable hourly rate in this case is that charged by consumer attorneys practicing in the local legal community.” (Tidrick v. FCA US LLC (2025) 112 Cal.App.5th 1147, 1157.) Plaintiff’s exhibits attaching rulings from other Superior Courts are not availing as the Court may not consider them for any purpose. (See TBG Ins. Service Corp. v. Superior Court (2002) 96 Cal.App.4th 443, 447 fn.2; California Rule of Court 8.1115.) Even if the Court could consider these, the use of state court cases without a survey showing rates awarded in comparable counties renders such information unhelpful to the Court. The Court finds that four hours for replying to the instant motion is excessive and will include only two of the four requested hours in the lodestar calculation. The Court adopts General Motors’ recommendations for hourly amounts as consistent with the going rate in the county. Christine Morano is listed as a “paralegal” but appears to have been an attorney throughout this case; the entry is stricken. This leaves: Dillavon 18.9 hours at \$500 per hour Youssefi: 10.7 hours at \$500 per hour Jacobs 1.4 hours at \$500 per hour Paralegal: 15.9 hours at \$150 per hour Totalling: \$17,885. The Court finds the stated costs and expenses in the amount of \$961.11 are reasonable given the nature of the case.

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